



U.S. Department
of Transportation

Research and
Special Programs
Administration

00

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 11964

EXPIRATION DATE: January 31, 1998

1. GRANTEE: Matec, Inc.
Lake Oswego, Oregon
2. PURPOSE AND LIMITATION: This emergency exemption authorizes the one-time shipment of certain drums that are not authorized packagings for the material described in paragraph 6 below. This exemption provides no relief from any regulation other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 173.158.
5. BASIS: This emergency exemption is based on the application of Matec, Inc. dated September 15, 1997, submitted in accordance with 49 CFR 107.117 and a determination that it is necessary in order to preclude a serious economic loss.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description -- proper shipping name	Hazard Class/ Division	Identi- fication Number	Packing Group
nitric acid other than red fuming, with not more than 70 percent nitric acid	8	UN2031	II

7. PACKAGING AND SAFETY CONTROL MEASURES:
 - a. PACKAGING - Packagings prescribed are 60 UN 1H1, packing

(49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued at Washington, D. C.:



Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

OCT 14 1997

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D. C. 20590.
Attention: DHM-31.

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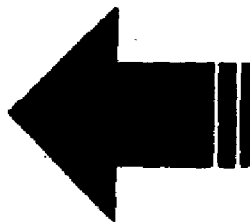
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U.S. Department
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Research and
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JUN 15 1998

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 11965

EXPIRATION DATE: April 15, 2000

(FOR RENEWAL, SEE 49 CFR SECTION 107.109.)

1. **GRANTEE:** J.R. Simplot Company
Edison, California
2. **PURPOSE AND LIMITATION:** This exemption authorizes tank cars, containing hazardous materials identified in paragraph 6, to remain standing with unloading connections attached when no product is being transferred, provided that a minimal level of monitoring, as specified in this exemption is maintained, and provides no relief from any regulations other than as specifically stated.
3. **REGULATORY SYSTEM AFFECTED:** 49 CFR Parts 106, 107 and 171-180.
4. **REGULATIONS FROM WHICH EXEMPTED:** 49 CFR 174.67 (i) and (j) and 172.301 (c).
5. **BASIS.** This exemption is based on J.R. Simplot Company's application of September 19, 1997, submitted in accordance with 49 CFR 107.105, and the public proceeding thereon.
6. **HAZARDOUS MATERIALS (49 CFR 172.101):**

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/Division	Identification Number	Packing Group
Phosphoric acid	8	UN 1805	III

7. **PACKAGING(S) and SAFETY CONTROL MEASURES:**
 - a. Packagings prescribed are DOT specification tank cars authorized for the material specified meeting all DOT specification requirements.

- b. Any manually operated switch, under the proprietary control of the exemption holder, providing access to the track on which the equipment is located must be lined against movement to that track and locked with an effective locking device operable only by a representative of the facility.
- c. The facility operator shall install a bi-directional derail in an effective location (at least 50 feet when possible) from the end of the equipment to be protected by the caution sign. The person performing the unloading operation shall lock the device in the derailing position with an effective locking device operable only by a representative of the facility.
- d. The facility operator shall designate an employee responsible for on-site monitoring of the transfer facility in the absence of the unloader. The designated employee must be made familiar with the nature and properties of the product contained in the tank car, procedures to be followed in the event of an emergency; and, in the event of an emergency, have the ability and authority to take responsive actions.
- e. When a signaling system is used (including a monitoring system or a sensing device), the system must be capable of alerting the designated employee in the event of an emergency and providing immediate notification of any monitoring system malfunction. If the monitoring system does not have self-monitoring capability, the designated employee shall check the monitoring system hourly for proper operation. (For recommendations on the selection, installation and maintenance of signaling systems see NFPA 72 - Installation, Maintenance and Use of Protective Signaling Systems.)
- f. In the absence of the unloader, the designated employee shall:
 - (i) ensure that the tank car and facility shutoff valves are secured in the closed position;
 - (ii) not transfer product; and
 - (iii) ensure the requirements of 49 CFR 174.67(a)(2) and (3) are in place.

8. SPECIAL PROVISIONS.

a. The facility operator shall have written safety procedures on file at each location that uses this exemption. The facility operator shall instruct each employee performing any function under this exemption on the contents of these procedures and ensure compliance with them. The written procedures must contain at least the following:

- (i) A physical description of the facility including the address and hours of operation.
- (ii) A drawing of the transfer facility showing natural and manmade barriers, locations of protective equipment (i.e. derail and caution sign), locations of emergency equipment and locations of signalling equipment.
- (iii) Procedures for monitoring the transfer facility [see paragraphs 7(a) and (b)].
- (iv) Information on the contents of the tank car including:
 - (a) chemical or common name of the product
 - (b) health and physical hazards involved in handling the product
 - (c) emergency and first aid procedures
- (v) Procedures for securing the transfer facility and protective equipment including derail, switch locks, tank car brakes, caution sign and wheel blocks.
- (vi) Equipment available for employee safety and procedures for using the equipment.
- (vii) Procedures and limitations for movement of tank cars in the vicinity of the transfer facility.
- (viii) Testing and maintenance of system components including signaling systems.
- (ix) Training requirements for designated employees responsible for monitoring the transfer facility.

- (x) Procedural steps in the event of an emergency, including names and phone numbers of key personnel and public agencies to contact.
- (xi) Procedures for reviewing incidents to determine whether the written procedures require revision or modification to prevent future occurrences and amending those procedures when the review necessitates changes.

b. The facility operator must establish and maintain liaison with fire, police and other appropriate public officials to learn the responsibilities and resources of each governmental agency that may be called upon to respond to an emergency involving the tank car and transfer facility and acquaint the officials with the facility's capabilities and procedures in the event of an emergency.

c. The marking requirements of 49 CFR Part 107, section 172.301(c) are waived.

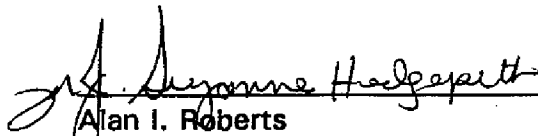
- 9. MODES OF TRANSPORTATION AUTHORIZED. Rail freight.
- 10. MODAL REQUIREMENTS: None as a requirement of this exemption.
- 11. COMPLIANCE. Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq :
 - o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Registration required by 49 CFR 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in 49 CFR 171.8 who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by 49 CFR 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. **REPORTING REQUIREMENTS.** The holder of this exemption must inform the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving inadvertent release of the hazardous material during operations conducted under the terms of this exemption.

Issued at Washington, D.C.:



Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

JUN 15 1998

(Date)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590 Attention: DHM-31.

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